| PETITIONER:<br>RESPONDENT:<br>OTHER PARENT/PARTY: | CASE NUMBER: |
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## CHILD CUSTODY AND VISITATION (PARENTING TIME) ORDER ATTACHMENT

**TO** ☐ ***Findings and Order After Hearing*** **(form FL-340)** ☐ ***Judgment*** **(form FL-180)** ☐ ***Judgment*** **(form FL-250)**
☐ ***Stipulation and Order for Custody and/or Visitation (Parenting Time)*** **(form FL-355)**
☐ **Other** *(specify):*

1. **Jurisdiction.** This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act (Fam. Code, §§ 3400–3465).
2. **Notice and opportunity to be heard.** The responding party was given notice and an opportunity to be heard, as provided by the laws of the State of California.
3. **Country of habitual residence.** The country of habitual residence of the child or children in this case is
   ☐ the United States ☐ Other *(specify):*
4. **Penalties for violating this order.** If you violate this order, you may be subject to civil or criminal penalties, or both.
5. ☐ **Child abduction prevention.** There is a risk that one of the parties will take the children out of California without the other party's permission. (*Child Abduction Prevention Order Attachment* (form FL-341(B)) is attached and must be obeyed.)
6. ☐ The court refers the parties to child custody mediation or child custody recommending counseling as follows:

7. ☐ **Child custody**. Custody of the minor children of the parties is awarded as follows:

| a. Child's Name | Birth Date | Legal custody to: *(person who decides about the child's health, education, and welfare)* | Physical custody to: *(person the child regularly lives with)* |
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| | | | |

   b. ☐ Joint legal custody of the child or children will be exercised as specified in the following order:
      ☐ Attachment 7b (form MC-025 may be used for this purpose)
      ☐ *Joint Legal Custody Attachment* (form FL-341(E))

8. ☐ **Child custody and visitation (parenting time) involving allegations of a history of abuse or substance abuse**
   a. Allegations have been raised in form FL-311, other documents filed in the court, or in a court hearing that
      (1) ☐ Petitioner ☐ Respondent ☐ Other parent/party is (or are) alleged to have a history of abuse against any of the following persons: a child, the other parent, their current spouse, or the person they live with or are dating or engaged to.
      (2) ☐ Petitioner ☐ Respondent ☐ Other parent/party is (or are) alleged to have the habitual or continual illegal use of controlled substances, or the habitual or continual abuse of alcohol, or the habitual or continual abuse of prescribed controlled substances.
   b. ☐ The court does NOT grant sole or joint custody of the minor children to:
      ☐ Petitioner ☐ Respondent ☐ Other parent/party
   c. ☐ (1) Even though there are allegations of a history of abuse or substance abuse, the court GRANTS sole or joint custody of the minor child as set out in item 7.
      (2) As required by Family Code section 3011(a)(5)(A), the court's reasons for making the orders:
         (A) ☐ Are in writing and filed separately (form FL-351 may be used for this purpose).
         (B) ☐ Were recorded as follows: ☐ In a minute order ☐ By a court reporter ☐ Other *(specify):*
      (3) The court finds that the order is in the best interests of the child, protects the safety of the parties and the child, and is specific as to time, day, place, and manner of transfer (exchange) of the child as Family Code sections 3011(a)(5)(A) and 6323(c) require.

***THIS IS A COURT ORDER.***

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9. ☐ **Visitation (parenting time)**
   a. ☐ Reasonable right of visitation to the party without physical custody **(not appropriate in cases involving domestic violence)**
   b. ☐ See the attached _____-page document
   c. ☐ No visitation (parenting time)
   d. ☐ The visitation (parenting time) will be supervised as specified in the attached *Supervised Visitation (Parenting Time) and Exchanges Order* (FL-341(A)).
   e. ☐ Visitation (parenting time) for the ☐ petitioner ☐ respondent ☐ other *(name):* will be in person, by virtual visitation (not in person), and/or other ways as specified below:
      (1) ☐ **In person,** as follows
      (a) ☐ **Weekends starting** *(date):*
      *(Note: The first weekend of the month is the first weekend with a Saturday.)*

| **Weekend** | **Day(s)** | **Times** | | **Start of (or After) School *(if applicable)*** | |
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| ☐ 1st | from _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| | to _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| ☐ 2nd | from _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| | to _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| ☐ 3rd | from _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| | to _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| ☐ 4th | from _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| | to _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| ☐ 5th | from _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |
| | to _____ | at _____ ☐ a.m. ☐ p.m. | | ☐ start of | ☐ after |

      (i) ☐ The parties will alternate the fifth weekends, with the ☐ petitioner ☐ respondent ☐ other parent/party having the initial fifth weekend, starting *(date):*
      (ii) ☐ The ☐ petitioner ☐ respondent ☐ other parent/party will have the fifth weekend in ☐ odd ☐ even numbered months.
      (b) ☐ **Alternate weekends starting** *(date):*
      from _____ at _____ ☐ a.m. ☐ p.m. ☐ start of ☐ after
      to _____ at _____ ☐ a.m. ☐ p.m. ☐ start of ☐ after
      (c) ☐ **Weekdays starting** *(date):*
      from _____ at _____ ☐ a.m. ☐ p.m. ☐ start of ☐ after
      to _____ at _____ ☐ a.m. ☐ p.m. ☐ start of ☐ after
      (d) ☐ **Other visitation (parenting time) days and restrictions are** ☐ listed in Attachment 9e(1)(d) (form MC-025 may be used for this purpose) ☐ as follows:

      (2) ☐ **Virtual visitation**, as follows:

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9. e. (3) ☐ **Other ways visitation can happen** that are in the best interests of the child are as follows:

10. ☐ **Supervised visitation (parenting time)**

Until ☐ further order of the court ☐ other *(specify):*
☐ petitioner ☐ respondent ☐ other parent/party *(name):*
will have supervised visitation (parenting time) with the minor children according to the attached *Supervised Visitation (Parenting Time) and Exchanges Order* (form FL-341(A)).

11. ☐ **Transportation for visitation (parenting time) and place of exchange**

a. The children must be driven only by a licensed and insured driver. The vehicle must be legally registered with the Department of Motor Vehicles, and must have child restraint devices properly installed, as required by law.

b. ☐ Transportation **to** begin the visits will be provided by the ☐ petitioner ☐ respondent ☐ other *(specify):*

c. ☐ Transportation **from** the visits will be provided by the ☐ petitioner ☐ respondent ☐ other *(specify):*

d. ☐ The exchange point at the beginning of the visit will be at *(address):*

e. ☐ The exchange point at the end of the visit will be at *(address):*

f. ☐ During the exchanges, the party driving the children will wait in the car and the other party will wait in the home (or exchange location) while the children go between the car and the home (or exchange location).

g. ☐ Other *(specify):*

12. ☐ **Travel with children**. The ☐ petitioner ☐ respondent ☐ other parent/party *(name):*
**must** have written permission from the other parent or a court order to take the children out of

a. ☐ The state of California.

b. ☐ The following counties *(specify):*

c. ☐ Other places *(specify):*

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13. ☐ **Holiday schedule**. The children will spend holiday time as listed ☐ below ☐ in the attached schedule. *(Children's Holiday Schedule Attachment* (form FL-341(C)) may be used for this purpose.)

14. ☐ **Additional custody provisions**. The parties will follow the additional custody provisions listed ☐ below ☐ in the attached schedule. (*Additional Provisions—Physical Custody Attachment* (form FL-341(D)) may be used for this purpose.)

15. **Access to children's records.** Both the custodial and noncustodial parent have the right to access records and information about their minor children (including medical, dental, and school records) and consult with professionals who are providing services to the children.

16. ☐ **Other** *(specify):*



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